

TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

November 13, 2025 at 10:00 a.m.

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	2022-01267200 <i>Anderson vs. Bazoft Automotive LLC</i>	Motion to Compel Production Plaintiffs Jeffrey Anderson and Margaret Parker’s Motion to Compel Further Responses from Defendant Sentry Select Insurance Company to Request for Production, Set Two, filed under Register of Actions No. 594, is continued to 12/11/2025 at 10:00 AM in this department pursuant to Court's motion.
2	2022-01287057 <i>Carney vs. Gardner</i>	Motion to Quash Subpoena Plaintiff Melinda Carney’s Motion to Quash Defendants’ Subpoenas is GRANTED. The subpoenas issued to Ralph N. Steiger, M.D. c/o Recors Source; Disneyland Cast Health Center; Samimi Orthopedic Group; Open System Imaging; Risser Orthopaedic Group; Beverly Hills Sunset Surgery Center; Sean K. Calahan, R.P.T.; Caludia R. Gold, M.D.; Frank Giacobetti, M.D.; Hill Imaging Center; Harmon Physical Therapy; United Care Health Group; Skylar Orthopedics; Kathleen L. Moore, Ph.D.; Ronald B. Perelman, M.D.; Golden State Sports Injury & Orthopedic Medical Associates, Inc.; Hill Medical Corporation; Leonard Petrus, M.D.; Sonal Lalwani, M.D.; Emanate Health – Queen of the Valley; One Call Care Physical Therapy; Marthin Luther King, Jr. Community Hospital; Spinal Kinetics; Urgent Care 3D; West Covina Medical Center; Bellflower Health Center; Robert D. Sibley, M.D.; Emanante Health Diagnostic Imaging Center; Madison Radiology Medical Group c/o Radnet Management, Inc.; Optum; Optum Radiology Department; West Covina Medical Center; Halo Diagnostics; Kerlan-Job Surgery Center; St. Josphe Hospital; HealthCare Partners Medical Group; UMI of West Covina; Long Beach Comprehensive Health Center; Citrus Diagnostic Imaging; and Medical Specialties Manager, Inc. for medical, billing, and radiology records are limited to records 5 years prior to the incident to present and related to the following body parts and complaints: head, neck, lower back, left shoulder, and both wrists. A patient has a privacy interest in a doctor's medical records pertaining to the patient's physical or mental condition. (Lewis v. Superior Court (2017) 3 Cal.5th 561, 575). However, the burden rests on the party asserting a privacy interest to establish the extent and seriousness of the prospective invasion, which must be weighed against the countervailing interests identified by the opposing party. (Williams v. Superior Court (2017) 3 Cal.5th 531, 557.) Although the constitutional right to privacy extends to a patient's medical records, this protection is not absolute, and disclosure of medical histories may be compelled where the need for disclosure outweighs privacy concerns. (Kizer v. Sulnick (1988) 202 Cal.App.3d 431, 438.) The party seeking discovery must show that the information is directly relevant to the case, and that it is essential to determining the truth of the matters in dispute. (Britt v. Superior Court (1978) 20 Cal.3d 844, 859.)

		The party seeking discovery of confidential information must show a particularized need for the information sought. The court must be convinced that the information is directly relevant to a cause of action or defense, i.e., that it is essential to determining the truth of the matters in dispute. (Britt, supra, 20 Cal.3d 844, 859-862; Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group June 2018 update) § 8:320.) The subpoenas are overbroad because they seek any and all records without limitation as to scope or time. Plaintiff has shown the body parts and complaints at issue are: head, neck, lower back, left shoulder, and both wrists. Additionally, Defendants do not dispute the list provided by Plaintiff. According, Plaintiff's Motion is granted
3	2025-01489873 <i>Chen vs. Mercedes-Benz USA, LLC</i>	Motion to Compel Arbitration Defendant Mercedes-Benz USA, LLC's Motion to Compel Binding Arbitration is GRANTED. Plaintiff Minyi Chen's (Plaintiff) unopposed Request for Judicial Notice is GRANTED. (Evid. Code, §§ 452, 453.) Plaintiff's objections are OVERRULED. The court will consider Defendant's exhibits that were inadvertently omitted from motion filed with the court, which Defendant attached to its reply. Defendant Mercedes-Benz USA, LLC (Defendant) has brought this motion pursuant to both the Federal Arbitration Act (9 USC § 1-14) (FAA) and the California Arbitration Act (Code Civ. Proc., §§ 1281 et seq.) (CAA). <u>Existence of Arbitration Agreement</u> A party moving to compel arbitration bears the initial burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165 (Gamboa).) The moving party can meet its initial burden by either attaching a copy of the arbitration agreement purporting to bear the opposing party's signature to the motion or by setting forth the agreement's provisions verbatim in the motion. (Ibid; Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 219 (Condee); Cal. Rules of Court, rule 3.1330.) For this step, "it is not necessary to follow the normal procedures of document authentication." (Condee, supra, 88 Cal.App.4th at p. 218.) "If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion. (Gamboa, supra, 72 Cal.App.5th at p. 165.)

“[I]f the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (Gamboa, supra, 72 Cal.App.5th at pp. 165-165 [cleaned up].)

Here, Defendant seeks to compel arbitration pursuant to an arbitration provision contained the Credit Authorization and Acknowledgment (Credit Acknowledgment). However, other than making the general assertion that it can enforce the Credit Acknowledgment’s arbitration provision, Defendant’s specific arguments regarding equitable estoppel and third-party beneficiary make no reference to it. (See Motion, pp.8:21-11:16.) The court is not required to examine undeveloped claims. (Maral v. City of Live Oak (2013) 221 Cal.App.4th 975, 984.) Therefore, the court finds Defendant has not established it is entitled to compel arbitration pursuant to the Credit Acknowledgment.

Defendant seeks to compel arbitration pursuant to an arbitration provision in the California Motor Vehicle Lease Agreement between Plaintiff and Mercedes-Benz of Arcadia (Dealership), who is not a party to this action, dated 2/9/23 (Lease). (See Milstein ¶ 3 & Ex. B to Reply.) The Lease refers to Plaintiff as “Lessee,” “Co-Lessee,” and “You” and the Dealership as “Lessor.” The Lease also describes “We,” “Us”, and “Our” as Lessor, and after the Lease is assigned, to Mercedes-Benz Vehicle Trust or its successors or assigns. (See Motion, p. 2:5-8; Lease Agreement at p. 1, Ex. B to Reply.)

The arbitration provision in the Lease provides, in part: **IMPORTANT ARBITRATION DISCLOSURES**

The following arbitration provisions significantly affect your rights in any dispute with us. Please read the following disclosures and the arbitration provision that follows carefully before you sign the contract.

1. If either you or we choose, any dispute between you and us will be decided by arbitration and not in court.
2. If such dispute is arbitrated, you and we will give up the right to a trial by a court or a jury trial.
3. You agree to give up any right you may have to bring a class action lawsuit or class arbitration, or to participate in either as a claimant, and you agree to give up any right you may have to consolidate your arbitration with the arbitration of others.

4. The information that can be obtained in discovery from each other or from third persons in arbitration is generally more limited than in a lawsuit.

5. Other rights that you and/or we would have in court may not be available in arbitration.

Any claim or dispute, whether in contract, tort or otherwise (including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue), between you and us or any of our employees, agents, successors, assigns, or the vehicle distributor, including Mercedes-Benz USA LLC (each a ‘Third Party Beneficiary’), which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract) shall, at the election of either you, us, or a Third Party Beneficiary, be resolved by a neutral, binding arbitration and not by a court action. Any claim or dispute is to be arbitrated on an individual basis and not as a class action. The arbitration shall be administered by the American Arbitration Association, or by any other organization that you may choose, subject to our or a Third Party Beneficiary’s approval.

[...]

(See Motion, pp. 2:10-3:18 & Lease at p. 4, Ex. B to Reply [**bold in original, underline added**].)

The arbitration provision also states that “[a]ny arbitration under this lease shall be governed by the Federal Arbitration Act (9 USC 1, et seq.).” (Motion, p. 3:16-17 & Lease at p. 4, Ex. B to Reply.) Plaintiff does not contest that the FAA applies. (See Rodriguez v. Am. Technologies, Inc. (2006) 136 Cal.App.4th 1110, 1122 [“Thus, there is no ambiguity regarding the parties’ intent. They adopted the FAA—all of it—to govern their arbitration. The FAA controls”].) Accordingly, the court finds that the FAA governs.

Defendant has met its initial burden by setting forth the arbitration provisions of the Lease verbatim in the motion. Plaintiff has failed to produce evidence challenging the authenticity of the agreement. Plaintiff has also failed to challenge the validity of the agreement. Thus, the court finds Defendant has established the existence of an arbitration agreement in the Lease.

Equitable Estoppel

Defendant contends it is entitled to enforce the arbitration provision in the Lease based on principles of equitable estoppel and third-party beneficiary. The Lease contains a broad arbitration provision that specifically references Defendant. (See provision quoted above.) Plaintiff contends Defendant lacks standing to do so because his claims against Defendant under the Song-Beverly Consumer Warranty Act (Song-Beverly Act) do not arise from the Lease; Defendant does not directly benefit from the Lease and the motivating purpose of Lease was not to benefit Defendant since it expressly allows only Plaintiff and the Dealership to compel arbitration; and permitting Defendant to enforce

the arbitration clause would be inconsistent “with the objectives of the contract,” i.e. to finance Plaintiff’s lease of the vehicle and allow only Plaintiff and the Dealership to compel arbitration, and violate “ the reasonable expectations of the parties.”

“Under certain circumstances, a nonsignatory to an arbitration agreement may seek to enforce it against a signatory. Whether such enforcement is permissible is a question of state law.” (Ford Motor Warranty Cases (2023) 89 Cal.App.5th 1324, 1332 (Ochoa) [citing *Kramer v. Toyota Motor Corp.* (9th Cir. 2013) 705 F.3d 1122, 1128; *Thomas v. Westlake* (2012) 204 Cal.App.4th 605, 614, fn. 7].) Even where the FAA applies, state contract law determines whether a non-signatory may compel arbitration. (*Arthur Andersen LLP v. Carlisle* (2009) 556 U.S. 624, 630-631; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 353, fn. 6.)

State law provides six theories by which a non-signatory may compel or be bound to arbitrate. These theories include: “(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary.” (*Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513 [cleaned up].)

“[T]he equitable estoppel doctrine applies when a party has signed an agreement to arbitrate but attempts to avoid arbitration by suing nonsignatory defendants for claims that are based on the same facts and are inherently inseparable from arbitrable claims against signatory defendants.” (*Metalclad Corp. v. Ventana Environmental Organizational Partnership* (2003) 109 Cal.App.4th 1705, 1713 (Metaclad) [cleaned up].) “Courts applying equitable estoppel against a signatory have looked to the relationships of persons, wrongs and issues, in particular whether the claims that the nonsignatory sought to arbitrate were intimately founded in and intertwined with the underlying contract obligations.” (*Ibid.* [cleaned up].)

The California Supreme Court in *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, recently addressed the application of equitable estoppel in the context of Song-Beverly Act cases. In *Ford Warranty Cases*, Ford cited to *Metaclad*, a case cited by Plaintiff here, in support of its argument that the plaintiffs were equitably estopped from contending that Ford was a nonsignatory, and the Supreme Court rejected this argument:

“Under that analysis, in limited circumstances, if a plaintiff sues a third party to assert a claim that is intimately founded in and intertwined with a contractual provision, that third party may move to compel arbitration of the claim even though that third party is a stranger to the contract . . . We conclude this estoppel approach has no application here. Ford seeks to invoke an arbitration clause in a dispute flowing, not from the contract where the arbitration clause appears, but from obligations imposed by statute or conventional fraud duties. As plaintiffs’ claims are not intimately founded in or intertwined with the sales contracts,

plaintiffs should not be estopped from pursuing their remedies against Ford in court.”

(Ford Motor Warranty Cases, *supra*, 17 Cal.5th at p. 1126 [cleaned up].)

Here, none of Plaintiff’s claims against Defendant depend on the existence of either the Lease or any obligation it imposes on Defendant. Nothing in the Complaint suggests Plaintiff’s claims are based on any express or implied warranty contained in the Lease; and the material terms of the express written warranty alleged in the Complaint appear nowhere in the Lease. In addition, Defendant’s warranty obligations to Plaintiff would arise even absent the Lease. For instance, if Plaintiff had purchased the Subject Vehicle out right from the Dealership rather than leasing or financing it, Defendant’s obligations under the Song-Beverly Act would still exist. Thus, Plaintiff’s claims are independent of the Lease arise out of warranties directly between Plaintiff and Defendant or otherwise imposed by law upon Defendant.

As such, the court finds equitable estoppel does not apply here.

Third-Party Beneficiary

The “third party beneficiary” analysis, however, does not consider whether Plaintiff’s claims are necessarily intertwined with the sales or lease contract. Instead, courts determine “(1) whether the third party would in fact benefit from the contract . . . (2) whether a motivating purpose of the contracting parties was to provide a benefit to the third party, and (3) whether permitting a third party to bring its own breach of contract action against a contracting party is consistent with the objectives of the contract and the reasonable expectations of the contracting parties. All three elements must be satisfied to permit the third party action to go forward.” (Goonewardene v. ADP, LLC (2019) 6 Cal.5th 817, ADP, LLC (2019) 6 Cal.5th 817, 829-830 (Goonewardene).)

Further, the Supreme Court in Ford Motor Warranty Cases relied on the fact that “Ford, the manufacturer, was not a party to, or named in, the sales contracts.” (Ford Motor Warranty Cases, 17 Cal.5th at p. 1126 [emphasis added, cleaned up].)

Here, on the other hand, the Lease expressly names Defendant as a third-party beneficiary. (See Motion, p. 3:5-6 & Lease at p. 4, Ex. B to Reply.)

Plaintiff’s reliance on Ngo v. BMW of N. Am. (9th Cir. 2022) 23 F.4th 943 and Ochoa, *supra*, 89 Cal.App.5th 1324 is misplaced. Unlike the sales contracts in Ngo and the Ochoa, the Lease here expressly names Defendant as a third-party beneficiary and specifically allows Defendant as a third-party beneficiary to elect binding arbitration to resolve a dispute between Plaintiff and Defendant. (Motion, p. 3:5-10 & Lease at p. 4, Ex. B to Reply.)

		Accordingly, each element of the Goonewardene three-part test have been met. First, by naming Defendant as a third-party beneficiary, the Lease evinces an intention to directly benefit Defendant by allowing it to take advantage of the arbitration provisions. Second, a motivating purpose of the contracting parties was to provide Defendant with a benefit, i.e. the power to compel arbitration. Third, since the contracting parties' specifically named Defendant as a third-party beneficiary, allowing Defendant to enforce the arbitration provisions is consistent with the contracting parties' reasonable expectations. Therefore, Defendant is an expressly intended third-party beneficiary who may compel arbitration under the Lease. (See Ochoa, supra, 89 Cal.App.5th at p. 1339 [noting that "[i]f the signatories had intended to benefit FMC, such a purpose would have been easy to articulate. They could have simply named FMC—directly or by class as the vehicle's manufacturer—as a person entitled to compel arbitration. But they did not."]; see also Ngo, supra, 23 F.4th at p. 948 [similarly noting "the parties easily could have indicated that the contract was intended to benefit BMW—but did not do so."].) The court therefore finds Defendant is an intended third-party beneficiary under Goonewardene. The motion is GRANTED. The court STAYS this action pending resolution of the parties' arbitration. (Code Civ. Proc., § 1281.2.) Defendant to give notice.
4	2023-01326675 <i>Contreras vs. Costa Mesa Knockout, LLC</i>	Motion to Enforce Settlement The unopposed motion of plaintiff Adrian Contreras for an order enforcing a settlement with defendants Costa Mesa Knockout, LLC, Paige Hopkins, and Kevin Reilly and entering judgment on it is GRANTED. Judgment requiring defendant to pay plaintiff \$35,000 will be entered.
5	2023-01318166 <i>Gilleland vs. Patterson</i>	Motion to Compel Deposition (Oral or Written) Defendant Martha G. Patterson's Motion to Compel Compliance with the Deposition Subpoena for Business Records from Nonparty FEM Law Group P.C. is DENIED as moot. Defendant's request for sanctions is GRANTED. FEM Law Group P.C. is ORDERED to pay \$1.352 in sanctions. Defendant's requests for judicial notice are granted as documents of the courts of this state. "If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc., § 2025.480(a).)

		FEM has since responded to the subpoena for business requests. If Defendant believes the responses are deficient, she must file a separate motion. <u>Sanctions</u> The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.480(j).) Here, FEM objected to all discovery requests on the basis of attorney client privilege, relevance, undue burden, privacy rights, and mediation privilege. FEM failed to provide any substantial justification for serving blanket boilerplate objections to all requests without individually analyzing the requests. For example, the first 2 requests are related to communications between FEM and Nikki Gilleland’s counsel. Such communications are not protected by the attorney-client privilege, attorney-work product, or involve any privacy concerns. Thus, FEM did not act with substantial justification.
6	2024-01438529 <i>Gray vs. Speno</i>	1) Motion to Compel Further Responses to Form Interrogatories 2) Motion to Compel Production Plaintiffs’ motions against Defendant ARJO Holding USA, Inc. are CONTINUED to 1/15/26 at 10:00 a.m. in this Department. The parties/counsel have not engaged in sufficient attempts to meet and confer. (See Code Civ. Proc., § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing].) The parties/counsel are ORDERED to engage in additional attempts to meet and confer <i>in person, telephonically, or over remote videoconferences (not email)</i> no later than 12/5/25. If Defendant agrees to serve further responses, Defendant shall serve verified further responses no later than 12/31/25. The parties/counsel are ORDERED to file a <i>JOINT STATUS REPORT</i>, no longer than five pages total, indicating whether court intervention remains the only option to resolve this discovery dispute, and if so, why, no later than 1/7/26. The report should clearly state <u>in the opening paragraph</u> which responses remain at issue.

		Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5. Plaintiffs to give notice.
8	2024-01371844 <i>Price vs. Ziemba</i>	Motion for Summary Judgment and/or Adjudication Defendants Tracey Finney and Bradley Finney’s motion for summary judgment is GRANTED. A defendant moving for summary judgment or summary adjudication has met his or her burden of showing that a cause of action has no merit if he or she shows one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (Code Civ. Proc., § 437c(p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense. (<i>Ibid.</i>) The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) Defendants’ request for judicial notice In support of their motion, Defendants request judicial notice of the following documents (ROA 122): (1) Exhibit A –First Amended Complaint filed by Plaintiff Reid Price on 8/5/24 A court may take judicial notice of its own records. (Cal. Evid. Code, § 452, subd. (e).) While “[a] court may take judicial notice of the <i>existence</i> of each document in a court file, [it] can only take judicial notice of the <i>truth</i> of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.” (<i>People v. Thacker</i> (1985) 175 Cal.App.3d 594, 599, italics in original, citation omitted.)) Accordingly, the Court GRANTS Defendants’ request for judicial notice. Plaintiff’s cause of action for negligent supervision “To establish liability in negligence, it is a fundamental principle of tort law that there must be a <i>legal duty</i> owed to the person injured and a breach of that duty which is the proximate cause of the resulting injury. . . [A] person is ordinarily not liable for the actions of another and is under no duty to protect another from harm, in the absence of a <i>special relationship</i> of custody or control.” (<i>Romero v. Superior Court</i> (2001) 89 Cal.App.4th 1068, 1078-1079, citations omitted.)

“A special relationship between the defendant and the victim is one that ‘gives the victim a right to expect’ protection from the defendant, while a special relationship between the defendant and the dangerous third party is one that ‘entails an ability to control [the third party’s] conduct.’” (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 216, citation omitted.) “The existence of such a special relationship puts the defendant in a unique position to protect the plaintiff from injury. The law requires the defendant to use this position accordingly.” (*Ibid.*, citation omitted.) This rule “extends a right of recovery to individuals in relationships involving dependence or control, and who by virtue of those relationships have reason to expect the defendant’s protection.” (*Id.* at p. 220.) “Whether a duty exists is a question of law to be resolved by the court.” (*Id.* at p. 213, citation omitted.)

“To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor’s propensity to do the bad act.” (*Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 903.)

Defendants contend they did not owe a duty of care to Plaintiff because there was no special relationship between the parties, the incident did not occur on the Finneys’ property, and there is no evidence Defendants were aware of or had notice of any alleged dangerous propensity of Kayla Ziemba (Kayla).

The undisputed facts establish that Defendants hosted their daughter’s friends/co-workers, including Plaintiff, an adult, at their residence located at 10 Bel Flora in Rancho Santa Margarita, California (the Residence). (Undisputed Material Fact [UMF] Nos. 1, 2). The Residence is located at the end of Bel Flora Street that extends off a cul-de-sac located at the opposite end of the street from the Residence. (UMF No. 5). At the time of the incident, there was a basketball hoop located along a curb of the cul-de-sac on Bel Flora. (UMF No. 6). It was left by a former neighbor before the incident, did not belong to Defendants, and was not located on their property. (UMF Nos. 7, 8.)

It was common for the neighborhood kids to play at the basketball hoop, and at the time of the incident, the weather was sunny and there were no visible issues with the condition of the street where the hoop was located. (UMF Nos. 10-11.) As such, Defendants had no reason to worry about the group’s safety at the basketball hoop. (UMF No. 12.)

After spending some time at the Residence, Plaintiff left and stopped at the basketball hoop with his girlfriend on their way to the car to say their goodbyes to the group there. (UMF Nos. 16, 17.) A basketball rolled up to Plaintiff’s feet as he was standing near the curb. (UMF No. 18). Plaintiff then picked up the ball, dribbled it 1 to 3 times and took 1 to 3 steps forward to throw the ball to the player at the “top of the key”. (UMF Nos. 19, 20.) Kayla approached Plaintiff as he was dribbling the ball, and, in an effort to move around her, Plaintiff began a pivoting

		maneuver during which he contends Kayla tripped his foot from under him resulting in his fall. (UMF Nos. 21, 22). Defendants knew Kayla to be a sweet, well-mannered, and sporty girl, and she had been to the Residence on numerous occasions before the incident. (UMF Nos. 24, 25). At no time during any of Kayla's prior visits to the Residence did she injure or trip anyone, nor were Defendants aware of any prior incident where she tripped or injured another person. (UMF Nos. 26, 27). At the time of the incident, Defendants were unaware of any potentially dangerous propensity of Kayla, nor did they believe that she posed any danger to the other invited guests at the Residence. (UMF No. 28). As such, it is undisputed that the incident occurred at a location that was not located on Defendants' property and Defendants did not own. (UMF Nos. 6-9.) It is also undisputed that Defendants did not have any reason to be worried about the safety of the group playing basketball at the hoop. (UMF Nos. 10-12.) It is further undisputed that Defendants were unaware of any dangerous propensity of Kayla, and did not believe that she posed any danger to the other invited guests at the Residence. (UMF Nos. 24-28.) Plaintiff has not opposed the motion and otherwise presents no evidence demonstrating that Defendants owed any duty to Plaintiff based on a special relationship between Plaintiff and Defendants or Plaintiff and Kayla. Plaintiff has similarly presented no evidence that Defendants had any prior knowledge of any propensity by Kayla to trip or injure another person or that they otherwise had a duty to control Kayla's conduct. Accordingly, the Court GRANTS Defendants Tracey Finney and Bradley Finney's motion for summary judgment.
9	2022-01256458 <i>Reshotkin vs. Sasco</i>	Motion to Be Relieved as Counsel of Record The motion of attorney Sandeep J. Shah to be relieved as counsel for plaintiff Kirill Reshotkin is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the Court's signed order on client. Moving attorney is to give notice.
10	2024-01442750 <i>Reyes vs. Cordova</i>	Motion to Be Relieved as Counsel of Record Motion to Be Relieved as Counsel of Record Attorney Sergio Alejandro Copete's motion to be relieved as counsel for Plaintiff Jorge Reyes is DENIED without prejudice. Rule of Court 3.1362 governs motions to be relieved as counsel. The court has reviewed the materials submitted by the moving party, Attorney Sergio Alejandro Copete, and finds that counsel did not properly confirm Plaintiff's address to be current as required by rule 3.1326, subdivision (d). Attorney Copete has not shown he made reasonable efforts to locate a more current address for Plaintiff.

		Attorney Sergio Alejandro Copete to give notice.
11	2025-01458863 <i>Satin vs. HH Law Firm</i>	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Deem Facts Admitted (Continued from 11/6) <u>Motion #1</u> The motion of plaintiffs Ken Satin and Advocate Law Firm for an order compelling defendant HH Law Firm to serve a complete, substantive, Code-compliant, and verified response to the first set of form interrogatories is DENIED, as is the request for a monetary sanction. <u>Motion #2</u> The motion of plaintiffs Ken Satin and Advocate Law Firm, PC, for an order deeming the matters specified in the first set of requests for admissions propounded to defendant HH Law Firm admitted is DENIED, as is their request for a monetary sanction of \$21,245.00. Defendant's request for a monetary sanction is also denied because there is no evidence on which the Court may base that sanction.
12	2021-01226723 <i>Software Freedom Conservancy, Inc. vs. Vizio, Inc.</i>	Motion for Summary Judgment and/or Adjudication Defendant Vizio, Inc.'s Motion for Summary Adjudication is DENIED. Plaintiff Software Freedom Conservancy, Inc.'s Objections to Defendant's Memorandum of Points and Authorities and Separate Statement are overruled. Plaintiff may object to specified evidence, not argument or facts. (See Rules of Court, Rule 3.1354; Code Civ. Proc. § 437c(c & q).) Plaintiff's objections to the Williams Declaration are overruled. Plaintiff's objections to Defendant's exhibits are overruled. Defendant's objections to evidence are also overruled. The Court has reviewed Defendant's Amended Separate Statement of Facts, filed on 7/11/25 under ROA 530, which identifies the issues applicable to each fact. Defendant's separate statement sufficiently identifies the issues for summary adjudication under Rule 3.1350 and the Court will address the merits of the motion. <u>Legal Standard:</u> <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 849 (cleaned up, quoting Code Civ. Proc. § 437c), holds: "In moving for summary judgment, a defendant has met his burden of showing that a cause of action has no merit if he has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The plaintiff may not rely upon the mere allegations or denials of his pleadings to show that a triable issue of material fact exists

but, instead, must set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.”

Code of Civil Procedure section 437c(f)(1) provides, “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.

Summary of Relevant Allegations:

In the First Amended Complaint (FAC), Plaintiff alleges Defendant manufactures smart TVs which use a “SmartCast” system that relies on certain open-source software subject to the GPLv2 (General Public License version 2) and LGPLv2.1 (GNU Lesser General Public License version 2.1), agreements by which users of certain licensed open-source software may use and modify the software but must provide a public copy of the resulting software’s source code. (¶¶ 1, 32-48.) Plaintiff alleges, “users of software licensed under these agreements are free to do with the software what they like, so long as they give their users the same freedom.” (¶ 1.) Plaintiff alleges Defendant has violated the GPLv2 by distributing their smart TVs without providing the source code that would allow users to “modify the library and relink it to produce a modified executable.” (¶ 61.) Plaintiff alleges allowing software developers and users outside of Vizio to access and modify the source code would improve the consumer experience including allowing increased privacy/reduced data collection and disability accessibility, as well as preserving useful features which Vizio determines are obsolete. (¶¶ 111-120.)

Summary of Motion:

Defendant moves for summary adjudication as to the following issue of duty within the first and second causes of action (breach of contract and declaratory relief):

Whether the open-source software licenses in question require Vizio to provide information necessary to install modified versions of the licensed software back onto the Smart TVs with which the software was originally distributed while ensuring the TVs continue to function properly.

Defendant contends the GPLv2 and LGPLv2.1 (sometimes collectively “Agreements”) does not require it to include with the source code “all the information that ‘a person of ordinary skill’ would need to modify

the software and reinstall such modified versions of the GPLv2- and LGPLv2.1-licensed software back onto the same VIZIO Smart TVs while ensuring the TVs continue to function properly.” (Motion, 1:10-14.)

In opposition, Plaintiff cites the following portions of the Agreements:

“Section 3 of the GPLv2 provides, in pertinent part:

‘You may copy and distribute [a GPLv2-licensed] Program (or a work based on it...) in object code or executable form under the terms of Sections 1 and 2 above provided that you also do one of the following:

a) Accompany it with the complete corresponding machine-readable source code...; or,

b) Accompany it with a written offer, valid for at least three years, to give any third party ... a complete machine-readable copy of the corresponding source code....’

(AMF No. 15.) Section 3 of the GPLv2 defines “source code” as follows:

‘The source code for a work means the preferred form of the work for making modifications to it. For an executable work, complete source code means all the source code for all modules it contains, plus any associated interface definition files, plus the scripts used to control compilation and installation of the executable.’”

(Opp. at 5:5-15, emphasis removed.)

In addition to the language of the Agreements, Plaintiff relies on the understanding of representatives of Plaintiff and third-parties involved in the open software community. (Opp. at p. 6.)

Defendant contends a later version of the Agreements which is not applicable to the subject software, GPLv3, contains express reinstallation requirements as to certain products which are not applicable here, thereby evidencing that GPLv2 does not include such a requirement. (Motion, pp. 10-16.) Defendant further contends that Plaintiff’s public statements reflect admissions that GPLv2 did not include a reinstallation requirement which is why such a requirement was subsequently included in version 3.

The Issue Raised in the Motion is Properly Before the Court:

First, Plaintiff contends the issue presented by Defendant is not raised by Plaintiff in Plaintiff’s response to special interrogatory no. 4 which forms the basis for the motion. (Opp. at p. 8-9.) Interrogatory No. 4 stated, “For each computer program identified in SFC’s response to Special Interrogatory

No. 1, state with particularity every piece of technical material and source code that SFC contends VIZIO is obligated to provide upon request to comply with Section 3(a) of the GPLv2.” (Plaintiff’s Ex. 3.)

Plaintiff’s response stated in part, “Under the GPLv2, Propounding Party is obligated to provide all the source code for all of the computer program’s modules, together with associated interface definition files,

the scripts used to control compilation and installation of the executable on the same device on which the computer program was originally distributed. At a minimum, Propounding Party should deliver files such that a person of ordinary skill can compile the source code into a functional executable and install it onto the same device, such that all features of the original program are retained, without undue difficulty.”

Plaintiff argues, “Nowhere in its Interrogatory Response does SFC state that, under the GPLv2, VIZIO needs to provide SFC with information necessary to reinstall modified software back onto VIZIO’s Smart TVs.” (Opp. at 9:1-3.) Therefore, “the alleged duty that is the subject of VIZIO’s Motion is not even mentioned in SFC’s Interrogatory Response and thus is not before the Court. For this reason alone, the Motion fails.” (Opp. at 9:9-10.) Plaintiff further contends that ruling on the merits would not “completely” dispose of the duty identified in its response to interrogatory no. 4 because the motion does not address “whether VIZIO owes a duty to SFC under the GPLv2s to provide information necessary to allow SFC to reinstall unmodified software licensed under the GPLv2s.” (Id. at 9:23-24.) Plaintiff contends Defendant’s alleged duty could “extend to software that is not modified and to ensuring that the software that is licensed under the GPLv2s continues to function properly.” (Id. at 10:13-14.)

Plaintiff’s interrogatory response can be reasonably construed to include the issue raised in the motion. Moreover, Plaintiff has chosen to oppose the motion on the merits rather than concede the issue of duty raised in the motion, indicating Plaintiff alleges the disputed duty applies to Defendant. Moreover, Defendant cites paragraphs 116 and 118 of Plaintiff’s FAC and the testimony of Plaintiff’s witnesses which have asserted the existence of such a duty. (Reply. at pp. 2-3.)

Plaintiff also argues the Court previously denied Plaintiff’s motion for summary adjudication as to Defendant’s duty under the Agreements to produce certain information to Plaintiff on grounds including that the motion did not completely dispose of an issue of Defendant’s duty to provide the source code to third parties. (3/26/24 Minute Order.) “[I]f, under the facts and circumstances of a given case, a court finds it appropriate to determine the existence or nonexistence of a duty in the nature of a contractual obligation, it may properly do so by a ruling on that issue presented by a motion for summary adjudication.” (*Linden Partners v. Wilshire Linden Associates* (1998) 62 Cal.App.4th 508, 519.) In Plaintiff’s motion, Plaintiff sought summary adjudication as to only one of the alternative options available to Defendant for providing source code, which would therefore have not necessarily resolved the issue of Defendant’s breach of the subject provision. Here, unlike in Plaintiff’s motion, Defendant has presented a discrete issue of duty which may be fully resolved via this motion for summary adjudication because there are not alleged alternative measures available to satisfy the duty.

Application of the Agreements:

“When a contract is reduced to writing, the intention of the parties is to be ascertained from the writing alone, if possible; subject, however, to the other provisions of this Title.” (Civ. Code § 1639.)

“The proper interpretation of a contract is disputable if the contract is susceptible of more than one reasonable interpretation, that is, if the contract is ambiguous. An ambiguity may appear on the face of a contract, or extrinsic evidence may reveal a latent ambiguity. A court determining whether a contract is ambiguous must first consider extrinsic evidence offered to prove the parties' mutual intention. If the court determines that the contract is reasonably susceptible of an interpretation supported by extrinsic evidence, the court must admit that evidence for purposes of interpreting the contract. A court cannot determine based on only the four corners of a document, without provisionally considering any extrinsic evidence offered by the parties, that the meaning of the document is clear and unambiguous. Instead, a court must provisionally consider extrinsic evidence offered by the parties in the manner we have stated.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 114 [cleaned up].)

Here, the Agreements require Defendant to include access to the “machine-readable” source code with their smart TVs, with “source code” defined to include “the preferred form of the work for making modifications to it. For an [executable work or library], complete source code means all the source code for all modules it contains, plus any associated interface definition files, plus the scripts used to control compilation and installation of the [executable or library].” (Defendant’s Ex. 3, pp. 25-27.)

Plaintiff contends the phrases, “machine-readable” and “scripts used to control compilation and installation” support their assertion in response to special interrogatory no. 4 that Defendant should “deliver files such that a person of ordinary skill can compile the source code into a functional executable and install it onto the same device, such that all features of the original program are retained, without undue difficulty.”

Both sides cite statements and testimony by representatives of the parties and third-party individuals with expertise in the field who have differing views about whether the Agreements should be construed to include a reinstallation requirement. (See Defendant’s Exs. 7, 8, 9, 10, and 11 discussed at pp. 3-6 and 13-6 of Motion; Plaintiff’s Decls. of Kuhn, Waid, and Kooyman discussed at pp. 15-18 of Opposition.)

The Court finds the plain language of the Agreements is not conclusive at this stage as to whether the Agreements include a reinstallation requirement. The above definitions do not expressly state whether Defendant must allow for “reinstallation.” However, the use of language including “machine-readable,” and “control compilation or installation” at minimum creates ambiguity as to whether such a requirement was contemplated in the Agreements, which ambiguity cannot be resolved at this stage. The conflicting extrinsic evidence presented by the parties does not conclusively resolve the ambiguity, rather it further

		demonstrates a triable issue of fact as to this issue of duty. Therefore, the motion is denied.
13	2023-01343055 <i>Surdyk's Decorating vs. McAllister</i>	Motion – Other CONTINUED
14	2025-01487775 <i>Yun vs. Lee</i>	Order to Show Cause re: Preliminary Injunction The Order to Show Cause Re: Preliminary Injunction is CONTINUED to _____. Plaintiff is ORDERED to properly serve Defendants with the summons and complaint and the order to show cause. “A party requesting a preliminary injunction may give notice of the request to the opposing or responding party either by serving a noticed motion under Code of Civil Procedure section 1005 or by obtaining and serving an order to show cause (OSC). An OSC must be used when a temporary restraining order (TRO) is sought, or if the party against whom the preliminary injunction is sought has not appeared in the action. If the responding party has not appeared, the OSC must be served in the same manner as a summons and complaint.” (Cal. Rules of Court, rule 3.1150(a).) Plaintiff has not properly served Defendants with the Complaint. The proofs of service of summons show Plaintiff’s process server served the summons and complaint on a receptionist at Chung & Reynolds Law Firm. “A summons may be served on a person not otherwise specified in this article by delivering a copy of the summons and of the complaint to such person or to a person authorized by him to receive service of process.” (Code Civ. Proc., § 416.90.) The plaintiff bears the burden of proof to show the person served was authorized to by the defendant to accept service of process. (<i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1163.) A personal attorney or an attorney representing the party in another lawsuit is not presumed to be an authorized person. (<i>Zirbes v. Stratton</i> (1986) 187 Cal.App.3d 1407, 1416-1417.) Plaintiff has presented no evidence Chung & Reynolds was authorized to accept service for this lawsuit by either Defendant. Thus, the Court lacks jurisdiction to enter an injunction against Defendants.
15	2024-01439438 <i>Chou vs. Mercedes-Benz USA, LLC</i>	Demurrer to Amended Complaint (Continued from 11/6) Defendant Mercedes-Benz USA, LLC’s Demurrer is CONTINUED to _____. Plaintiff may file an additional opposition no later than 9 court days before the new hearing date and Defendant may file an additional reply no later than 5 court days before. Defendant’s request for judicial notice is granted. (See <i>Ascherman v. General Reinsurance Corp</i> (1986) 183 Cal.App.3d 307, 310-311 [courts

		may take judicial notice of the contracts upon which a plaintiff bases their complaint and may consider the contracts on a demurrer].) The hearing is continued to allow Plaintiff an opportunity to respond.
16	2017-00946231 Farah vs. Van Sickle	Motion – Other The Motion Pursuant to Code of Civil Procedure Section 664.6 to Have the Court Consider Extrinsic Evidence of Defendants’ Historical use of the Easements, and Determine Easement Terms Omitted in Defendants’ Second Amended Complaint, Motion for Summary Judgment, and the Parties’ Settlement Agreement and for an Award of Attorney’s Fees filed by Plaintiff/Cross-Defendant, Michael Farah, individually and as trustee of the Eric Wyser Charitable Trust is DENIED. The Court declines to rule on the objections filed by Defendants/Cross-Complainants, Rod Van Sickle and Kim Cashman (ROA 391) as immaterial to the Court’s ruling but the objections are preserved for purposes of appeal. (See <i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512, 526 [“the trial court’s failure to rule expressly on any of Google’s evidentiary objections did not waive them on appeal”]; see Code Civ. Proc., § 437c(q).) Legal Standard As with any contract, the settlement agreement requires mutual consent: “The existence of mutual consent is determined by objective rather than subjective criteria, the test being what the outward manifestations of consent would lead a reasonable person to believe.” (<i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 811, internal quotes omitted.) Moreover, to be binding, the agreement must be <i>sufficiently definite</i> to enable courts to give it an exact meaning. If an essential element is reserved for future agreement, it is not definite enough. (See <i>id.</i> at pp. 810-812 [incomplete terms in “deal point memorandum”].) Disputes regarding the terms of the settlement (or other disputed facts) may be adjudicated on a CCP § 664.6 motion, on the basis of declarations or other evidence. (<i>Malouf Bros. v. Dixon</i> (1991) 230 Cal.App.3d 280, 284; see <i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 795-796 [court may resolve reasonable disputes over terms of settlement agreement but may not modify terms from what was agreed to by parties].) In ruling on a motion under CCP § 664.6, the trial judge may receive oral testimony, or may determine the motion upon declarations alone. (<i>Corkland v. Boscoe</i> (1984) 156 Cal.App.3d 989, 994.) For example, where the settlement agreement is <i>ambiguous</i>, the court is required to consider extrinsic evidence of the parties’ intent. (<i>Steller v. Sears, Roebuck & Co.</i> (2010) 189 Cal.App.4th 175, 183.) The CCP § 664.6 “authorizes the court to entertain challenges to the actual terms of the stipulation, that is, whether there actually was a

settlement, upon a motion.” (*Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 565.) Trial courts are authorized to interpret the terms and conditions to settlement. (*Id.*, at 566.) However, “nothing in section 664.6 authorizes a judge to *create* the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 984, emphasis added, internal quotes omitted; see also *Eagle Fire & Water Restoration, Inc. v. City of Dinuba* (2024) 102 Cal.App.5th 448.) While the court may, under certain circumstances, reject a settlement agreement as a whole, it may *not* approve only *part* of it for § 664.6 enforcement without the parties' mutual consent. (*Leeman v. Adams Extract & Spice, LLC* (2015) 236 Cal.App.4th 1367, 1375.)

Merits

After entry of judgment, Plaintiff/Cross-Defendant Michael Farah (Farah) appealed the court’s order granting the motion for summary judgment filed by Defendants/Cross-Complainants Rod Van Sickle (Van Sickle) and Kim Cashman (Cashman) (collectively, Defendants) on complaint and cross-complaint and denying Farah’s motion for summary judgment.

On 2/26/2020, while Farah’s appeal was pending, the parties entered into the subject settlement agreement (Agreement). The Recitals portion of the Agreement refers to the complaint filed by “Farah” and the cross-complaint, along with the amended cross-complaints, filed by Van Sickle against Farah. It references the cross-MSJs, the court’s rulings and judgment (attached as Exhibits A and B, respectively, to the Agreement), notice of appeal, memo of costs, and motion to tax costs. Paragraph N of the Agreements states: “The Parties desire to resolve, once and for all times all present, past and future controversies, claims, causes of action or purported causes of action, differences or disputes, both real and potential between the Parties, including but not limited to those arising as a result of the facts alleged in the Complaint and Cross-Complaint filed in this Action[.]”

Thereafter, Van Sickle and Cashman filed a Motion For Order Enforcing Settlement, which the court granted on 2/25/2021. In opposition to the motion, Farah argued, *inter alia*, the Agreement was unenforceable because it was missing material terms such as the legal description of the easement.

In the present motion, Farah asks the court to hear or consider extrinsic evidence to determine easement terms omitted from the Agreement, which he also contends were omitted from Defendants’ SACC and MSJ, and the Court's Order and Judgment, regarding Defendants’ historical use of the easements. Farah contends the easements are defective because they lack a legal description and seeks a court order limiting the scope of the easements to evidence of historical use by Defendants. Farah seeks this limitation because he now objects to permitting Defendants’ invitees use of the easements. (See Dveirin Decl., ¶11.)

		Defendants correctly argue the motion is essentially a motion for reconsideration. A motion for reconsideration must be filed within 10 days after notice of the ruling being challenged is served, and he must make a showing of new facts or circumstances that could not have been raised earlier. (Code of Civ. Proc., § 1008.) The “new or different facts, circumstances or law” must be information that the moving party could not, with reasonable diligence, have discovered or produced at the first hearing. (<i>New York Times Co. v. Sup.Ct. (Wall St. Network, Ltd.)</i> (2005) 135 Cal.App.4th 206, 212-213.) Here, a notice of entry of judgment concerning the court’s order on the parties’ cross-MSJs was served over six years ago and a notice of ruling on Defendants’ motion to enforce the settlement were served and filed over four years ago. A motion for reconsideration of either order is untimely. Farah also fails to demonstrate that there are new facts or circumstances that could not have been raised before. The same evidence was available when the court granted Defendants’ summary judgment motion, denied Farah’s summary judgment motion and granted Defendants’ motion to enforce the settlement. Farah argues he does not ask the court fully reconsider the Order entered on 5/25/2019, but the fact that the Order itself does not support Defendants’ position that the Order actually awarded a prescriptive easement to Defendants and their “invitees,” rather than merely state the Court’s observation that Defendants sought a “previously prescriptive easement for sue by them and their invitees.” However, the court has the inherent authority to correct judicial error in its <i>interim orders</i> at any time <i>prior to final judgment</i>. (<i>Le Francois v. Goel</i> (2005) 35 Cal.4th 1094, 1096–1097, 1105 & fn. 4, 1107–1108, emphasis added.) Final judgment was entered in this case long ago on 6/18/2019. (ROA No. 235.) The motion is DENIED
17	2024-01431664 <i>Wade vs. General Motors LLC</i>	Motion to Compel Deposition (Oral or Written) (Continued from 11/6) Plaintiff Julie Wade’s Motion to Compel Deposition and Production of Documents is GRANTED in part and DENIED in part. “If, after service of a deposition notice, a party to the action, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document described in the deposition notice.” (Code Civ. Proc. § 2025.450(a) (cleaned up).) When the deponent has failed to appear, the motion to compel must be accompanied by a declaration stating that the moving party “has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc. § 2025.450(b)(2).)

When the deponent has failed to produce documents described in a deposition notice, the motion to compel must be accompanied by a declaration showing “good cause”, i.e. specific facts justifying inspection of the documents described in the notice, and a separate statement. (Code Civ. Proc. § 2025.450, subd. (b)(1); Cal. Rules of Court, rule 3.1345, subdiv. (a)(5).)

Here, on 3/6/24, Plaintiff sent a letter to Defendant requesting proposed dates when Defendant would be available for deposition. (Goldsmith Decl. ¶ 3, Ex. 1.) On 3/21/24, Plaintiff served a Notice of Deposition of GM’s PMQ With Production of Documents (Deposition Notice), unilaterally scheduling the deposition for 4/10/24; however, the text of the Deposition Notice requested alternate dates if the noticed date was unavailable. (Goldsmith Decl. ¶ 4, Ex. 2; Bowton Decl., ¶ 2.) The Deposition Notice was accompanied by cover letter, which stated Plaintiff remained willing to move the date if it was inconvenient for Defendant and requested proposed alternate dates. (Goldsmith Decl. ¶ 5, Ex. 3.) On 4/3/24, Defendant timely served objections to the Deposition Notice. (Goldsmith Decl., at ¶ 6, Ex. 4; Bowton Decl., ¶ 3.) While Defendant objected to the deposition categories listed, it agreed to produce a PMQ on many of those categories subject to certain terms and at a mutually agreed upon time and place. (Goldsmith Decl., Ex. 4.) Similarly, while Defendant objected to each document request, it identified and referred Plaintiff to the specific documents that would be produced, and had already been produced, in response to Plaintiff’s First Set of Requests for Production of Documents. (*Ibid.*) Notably, Defendant’s response did not include alternate dates for the deposition. (Id., at ¶ 6, Ex.4.) On 4/10/24, Defendant did not appear for the noticed deposition. (Id. at ¶ 7.)

Between 5/6/24 and 7/2/24, the parties traded a few meet and confer letters about the deposition and document request. (Goldsmith Decl., ¶¶ 8-10, Exs. 5-7; see Bowton Decl., ¶¶ 4-5.) The parties did not resolve their issues, and Defendant did not offer alternate dates. (Goldsmith Decl. ¶ 10, Ex. 7.) A year later, on 7/3/25 and 8/8/25, Plaintiff called and emailed Defendant requesting dates for the deposition and reiterating Plaintiff’s position regarding the deposition categories and document requests. (Id., ¶¶ 11-12, Exs. 8-9.) Defendant did not respond. (Id., ¶ 13.) Plaintiff filed the instant motion 8/12/25.

The court finds Plaintiff adequately met and conferred prior to filing the instant motion. The court also finds Defendant failed to appear for a duly noticed deposition and thereafter failed to offer any alternate dates for its deposition.

Plaintiff’s motion sets forth sufficient facts to justify compelling Defendant to produce the documents sought in the deposition notice, with the exception of Request No. 12, which seeks all documents evidencing all changes to the design of the subject vehicle. The court finds this request is overbroad as it is not limited to the issues Plaintiff complained of. Request no. 13 is sufficient for this purpose.

		Accordingly, the motion is GRANTED in part. Defendant is ORDERED to appear and give testimony at his deposition concerning each deposition category listed in the notice of deposition within 10 days. Defendant is further ORDERED to produce documents as to each document request listed Request for Production of Documents attached to the Notice of Deposition, except No. 12. Thus, the motion is DENIED as to Request for Production No. 12.
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